

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MUSA SANGARE,

Plaintiff,

-against-

THE CITY OF NEW YORK,
SERGEANT GREGORY MAROTTA (I.D. NUMBER
917118), DETECTIVE MATTHEW CERNY (SHIELD
NUMBER 6487), and P.O. JOHN DOE NO. 1 – P.O.
JOHN DOE NO. 19,

Defendants.
-----X

Index No.:

Date purchased:

SUMMONS

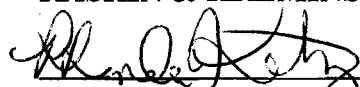
**Plaintiff designates
Kings County as Place of
Trial**

**The basis of venue is
location of incident -
Bay Parkway and Shore
Parkway, Kings, New York**

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this Summons, exclusive of the date of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint with interest and cost from the date of occurrence.

Dated: New York, New York
February 12, 2019

RASKIN & KREMINS, L.L.P.



By: RHONDA KATZ, ESQ.

Attorneys for Plaintiff

MUSA SANGARE

160 Broadway - 4th Floor

New York, New York 10038

(212) 587-3434

TO:

DEFENDANTS

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SERGEANT GREGORY MAROTTA – I.D. NUMBER 917118
CRIMINAL ENTERPRISE DIVISION
1 Police Plaza
New York, New York 10038

DETECTIVE MATTHEW CERNY – SHIELD NUMBER 6487
C.E.I.S. - CRIMINAL ENTERPRISE INVESTIGATION SECTION
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MUSA SANGARE,

Plaintiff,

-against-

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VERIFIED COMPLAINT

THE CITY OF NEW YORK,
SERGEANT GREGORY MAROTTA (I.D. NUMBER
917118), DETECTIVE MATTHEW CERNY SHIELD
NUMBER 6487), and P.O. JOHN DOE NO. 1 – P.O.
JOHN DOE NO. 19,

Defendants.
-----X

Plaintiff, MUSA SANGARE, by his attorneys, RASKIN & KREMINS, L.L.P.
complaining of Defendants, upon information and belief, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS

1. That at all times hereinafter mentioned, Plaintiff, MUSA SANGARE, was and is a resident of the City and State of New York, County of Bronx.
2. That at all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, Defendant, SERGEANT GREGORY MAROTTA (I.D. NUMBER 917118), (hereinafter SERGEANT GREGORY MAROTTA), was employed by Defendant THE CITY OF NEW YORK.
4. That at all times hereinafter mentioned, Defendant, SERGEANT GREGORY MAROTTA, was a member of the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant, DETECTIVE MATTHEW CERNY (SHIELD NUMBER 6487), (hereinafter DETECTIVE MATTHEW CERNY), was employed by Defendant THE CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant, DETECTIVE MATTHEW CERNY, was a member of the New York City Police Department.

7. That at all times hereinafter mentioned, Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, were employed by Defendant THE CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, were members of the New York Police Department.

9. That at all times hereinafter mentioned, Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, were employed by Defendant THE CITY OF NEW YORK, whose full identities are presently unknown and were involved in and committed the acts alleged in the subject incident that forms the basis of the within action.

10. That prior to commencement of this action, and by Order of Hon. Reginald A. Boddie, J.S.C., dated September 7, 2018, under Index number 1176/2018, and entered in the Office of the Clerk of the above-named Court on September 12, 2018, the Notice of Claim Plaintiff previously served upon Defendant THE CITY OF NEW YORK and upon the NEW YORK CITY POLICE DEPARTMENT, on May 18, 2018, is deemed timely served nunc pro tunc, within ninety (90) days of the occurrence herein, thereby notifying Defendants of the within occurrence as required by N.Y. General Municipal Law §50-e.

11. To date, Defendant, THE CITY OF NEW YORK, has not conducted and/or requested a hearing pursuant to N.Y. General Municipal Law §50-h and has thereby waived said hearing.

12. That more than thirty (30) days have elapsed since service of the aforesaid Notice of Claim and the claim has not been adjusted or paid and this action is commenced within one (1) year and ninety (90) days after the accrual of Plaintiff's cause of action.

13. That Plaintiff has complied with all conditions, precedent to the commencement of this action.

14. That Defendant, THE CITY OF NEW YORK, has neglected and/or refused to make adjustment or payment pursuant to Plaintiff's claim and less than one year and ninety (90) days have elapsed since the accrual of the cause of action herein set forth.

15. That at all times hereinafter mentioned, Defendant, SERGEANT GREGORY MAROTTA, was acting within the scope of his employment with Defendant, THE CITY OF NEW YORK, as a member of The New York City Police Department.

16. That at all times hereinafter mentioned, Defendant, DETECTIVE MATTHEW CERNY, was acting within the scope of his employment with Defendant, THE CITY OF NEW YORK, as a member of The New York City Police Department.

17. That at all times hereinafter mentioned, Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE, NO. 19, were acting within the scope of their employment with Defendant, THE CITY OF NEW YORK, as members of The New York City Police Department.

18. That on or about January 23, 2018, at approximately between 1:30 p.m. and 2:00 p.m., Defendant, SERGEANT GREGORY MAROTTA, came to be present at and about the shopping center parking lot located at and about Bay Parkway and Shore Parkway, in the City and State of New York, County of Kings, during the normal course of his employment with Defendant, THE CITY OF NEW YORK.

19. That on or about January 23, 2018, at approximately between 1:30 p.m. and 2:00 p.m., Defendant, DETECTIVE MATTHEW CERNY, came to be present at and about the shopping

center parking lot located at and about Bay Parkway and Shore Parkway, in the City and State of New York, County of Kings, during the normal course of his employment with Defendant, THE CITY OF NEW YORK.

20. That on or about January 23, 2018, at approximately between 1:30 p.m. and 2:00 p.m., Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, came to be present at and about the shopping center parking lot located at and about Bay Parkway and Shore Parkway, in the City and State of New York, County of Kings, during the normal course of their employment with Defendant, THE CITY OF NEW YORK.

21. That on or about January 23, 2018, at approximately between 1:30 p.m. and 2:00 p.m., Plaintiff, MUSA SANGARE, was a lawful pedestrian at and about the shopping center parking lot located at and about Bay Parkway and Shore Parkway, in the City and State of New York, County of Kings.

22. That on or about January 23, 2018, at approximately between 1:30 p.m. and 2:00 p.m., at the aforesaid location, Plaintiff, MUSA SANGARE, sustained severe and permanent personal injuries as a result of the wrongful, willful, reckless, careless and negligent acts of Defendants herein, their agents, servants and/or employees.

23. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendants SERGEANT GREGORY MAROTTA, DETECTIVE MATTHEW CERNY, and P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19.

24. That the foregoing occurred solely and wholly as a result of the negligence of Defendants herein, their agents, servants and/or employees, and without any negligence on the part of Plaintiff MUSA SANGARE contributing thereto.

25. That Defendants, their agents, servants and/or employees were negligent and careless in hiring, supervising, controlling, maintaining, training, educating, interviewing and investigating their agents, servants and/or employees; in negligently and carelessly failing to direct their agents, servants and/or employees not to use improper and/or excessive force; in negligently and carelessly, willfully and wrongfully causing, permitting and allowing Plaintiff MUSA SANGARE to be subjected to assault and battery, traumatized, pushed, shoved, tackled, falsely arrested and wrongfully imprisoned causing injury, emotional and psychological damage; in negligently and carelessly causing, permitting and allowing employees and/or personnel who were negligently trained to use improper and/or excessive force; in negligently and carelessly using improper and/or excessive force, in negligently and carelessly failing to adequately train police officers and/or other personnel for the public's safety, including Plaintiff MUSA SANGARE; in denying prompt and necessary medical attention; and in being otherwise careless and negligent.

26. That by reason of the foregoing, Plaintiff MUSA SANGARE became sick, sore, lame and disabled; Plaintiff MUSA SANGARE has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff MUSA SANGARE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff MUSA SANGARE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "26" of the complaint herein with the same force and effect as if set forth herein at length.

28. That Defendant, SERGEANT GREGORY MAROTTA, acting under the color of authority and without provocation, viciously and maliciously assaulted and battered Plaintiff, MUSA SANGARE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

29. That Defendant, DETECTIVE MATTHEW CERNY, acting under the color of authority and without provocation, viciously and maliciously assaulted and battered Plaintiff, MUSA SANGARE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

30. That Defendants P.O. JOHN DOE NO.1 – P.O. JOHN DOE NO. 19 acting under the color of authority and without provocation, viciously and maliciously assaulted and battered Plaintiff MUSA SANGARE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

31. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendants SERGEANT GREGORY MAROTTA, DETECTIVE MATTHEW CERNY, and P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19.

32. That by reason of the foregoing, Plaintiff MUSA SANGARE became sick, sore, lame and disabled; Plaintiff MUSA SANGARE has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff MUSA SANGARE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff MUSA SANGARE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all

to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "32" of the complaint herein with the same force and effect as if set forth herein at length.

34. That Defendant, SERGEANT GREGORY MAROTTA, acting under the color of authority and without provocation, viciously and maliciously detained, searched, falsely arrested and imprisoned Plaintiff, wrongfully depriving Plaintiff of his liberty.

35. That Defendant, DETECTIVE MATTHEW CERNY, acting under the color of authority and without provocation, viciously and maliciously detained, searched, falsely arrested and imprisoned Plaintiff, wrongfully depriving Plaintiff of his liberty.

36. That Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19 acting under the color of authority and without provocation, viciously and maliciously detained, searched, falsely arrested and imprisoned Plaintiff, wrongfully depriving Plaintiff of his liberty.

37. That Defendant, THE CITY OF NEW YORK, by and through its employees, including, SERGEANT GREGORY MAROTTA, DETECTIVE MATTHEW CERNY, and P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, without provocation, viciously and maliciously detained, searched, falsely arrested and imprisoned Plaintiff, wrongfully depriving Plaintiff of his liberty.

38. That Defendant, SERGEANT GREGORY MAROTTA, without probable cause, falsely arrested Plaintiff.

39. That Defendant, DETECTIVE MATTHEW CERNY, without probable cause, falsely arrested Plaintiff.

40. That Defendants P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, without probable cause, falsely arrested Plaintiff.

41. That Defendant THE CITY OF NEW YORK, by and through its employees, including Defendant SERGEANT GREGORY MAROTTA, DETECTIVE MATTHEW CERNY, and P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, without probable cause, falsely arrested Plaintiff.

42. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendants SERGEANT GREGORY MAROTTA, DETECTIVE MATTHEW CERNY, and P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19.

43. That Plaintiff MUSA SANGARE was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

44. That by reason of the foregoing, Plaintiff MUSA SANGARE became sick, sore, lame and disabled; Plaintiff MUSA SANGARE has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff MUSA SANGARE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff MUSA SANGARE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “44” of the complaint herein with the same force and effect as if set forth herein at length.

46. That Defendant, THE CITY OF NEW YORK, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted Plaintiff MUSA SANGARE

wrongfully depriving him of his liberty and due process of law.

47. That Defendant, THE CITY OF NEW YORK, acting under the color of authority and without provocation, viciously and maliciously falsely compelled Plaintiff MUSA SANGARE to appear in public and in court, wrongfully humiliating him and depriving him of his liberty and due process of law.

48. That Defendant, SERGEANT GREGORY MAROTTA, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted Plaintiff MUSA SANGARE wrongfully depriving him of his liberty and due process of law.

49. That Defendant, SERGEANT GREGORY MAROTTA, acting under the color of authority and without provocation, viciously and maliciously falsely compelled Plaintiff MUSA SANGARE to appear in public and in court, wrongfully humiliating him and depriving him of his liberty and due process of law.

50. That Defendant, DETECTIVE MATTHEW CERNY, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted Plaintiff MUSA SANGARE wrongfully depriving him of his liberty and due process of law.

51. That Defendant, DETECTIVE MATTHEW CERNY, acting under the color of authority and without provocation, viciously and maliciously falsely compelled Plaintiff MUSA SANGARE to appear in public and in court, wrongfully humiliating him and depriving him of his liberty and due process of law.

52. That Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted Plaintiff MUSA SANGARE wrongfully depriving him of his liberty and due process of law.

53. That Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, acting under the color of authority and without provocation, viciously and maliciously falsely compelled

Plaintiff MUSA SANGARE to appear in public and in court, wrongfully humiliating him and depriving him of his liberty and due process of law.

54. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including, Defendant SERGEANT GREGORY MAROTTA, DETECTIVE MATTHEW CERNY, and P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19.

55. That by reason of the foregoing, Plaintiff MUSA SANGARE became sick, sore, lame and disabled; Plaintiff MUSA SANGARE has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff MUSA SANGARE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff MUSA SANGARE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT SERGEANT
GREGORY MAROTTA**

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “55” of the complaint herein with the same force and effect as if set forth herein at length.

57. That on or about January 23, 2018, at approximately between 1:30 p.m. and 2:00 p.m., at the above-stated location, at and about the shopping center parking lot located at and about Bay Parkway and Shore Parkway, in the City and State of New York, County of Kings, Defendant, SERGEANT GREGORY MAROTTA, acting under the color of law, and without probable cause or provocation, viciously and maliciously falsely detained, searched, arrested, imprisoned, and confined Plaintiff, MUSA SANGARE; that thereafter, Defendant, SERGEANT GREGORY MAROTTA did cause Plaintiff to be transported from the aforesaid location to the local Precinct of

the New York City Police Department, and continued to wrongfully confine, and imprison Plaintiff, all of which deprived Plaintiff of his liberty.

58. That Plaintiff was conscious of his confinement; Plaintiff did not consent to his confinement; and the arrest, imprisonment, and confinement were not otherwise privileged or with just or probable cause.

59. That the aforesaid acts of Defendant, SERGEANT GREGORY MAROTTA, under color of law, as an individual, violated Plaintiff's right to due process, violated Plaintiff's property and/or liberty interests, violated Plaintiff's right to be free from unreasonable search and seizure, and/or violated Plaintiff's right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

60. That Defendant, SERGEANT GREGORY MAROTTA, under color of law, as an individual, violated 42 U.S.C. §1983.

61. That the aforesaid actions of Defendant, SERGEANT GREGORY MAROTTA, as an individual constituted an unreasonable seizure and confinement of Plaintiff without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

62. That by reason of the foregoing, Plaintiff MUSA SANGARE became sick, sore, lame and disabled; Plaintiff MUSA SANGARE has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff MUSA SANGARE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff MUSA SANGARE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDANT SERGEANT
GREGORY MAROTTA**

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "62" of the complaint herein with the same force and effect as if set forth herein at length.

64. That on or about January 23, 2018, at approximately between 1:30 p.m. and 2:00 p.m., at the above-stated location, at and about the shopping center parking lot located at and about Bay Parkway and Shore Parkway, in the City and State of New York, County of Kings, Defendant, SERGEANT GREGORY MAROTTA, acting under the color of law, and without probable cause or provocation, viciously and maliciously forcibly pushed and tackled Plaintiff MUSA SANGARE to the ground and used other excessive force in the course of an arrest when Defendant SERGEANT GREGORY MAROTTA falsely detained, searched, arrested, imprisoned, and confined Plaintiff, all of which deprived Plaintiff of his liberty.

65. That Plaintiff was conscious of his confinement; Plaintiff did not consent to his confinement and use of excessive force; and the arrest, imprisonment, confinement, and use of excessive force were not otherwise privileged or with just or probable cause.

66. That the aforesaid acts of Defendant, SERGEANT GREGORY MAROTTA, under color of law, as an individual, violated Plaintiff's right to due process, violated Plaintiff's property and/or liberty interests, violated Plaintiff's right to be free from unreasonable search and seizure, and/or violated Plaintiff's right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

67. That Defendant, SERGEANT GREGORY MAROTTA, under color of law, as an individual, violated 42 U.S.C. §1983.

68. That the aforesaid actions of Defendant, SERGEANT GREGORY MAROTTA, as an individual constituted an unreasonable use of excessive force, unreasonable seizure and confinement of Plaintiff without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

69. That by reason of the foregoing, Plaintiff MUSA SANGARE became sick, sore, lame and disabled; Plaintiff MUSA SANGARE has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff MUSA SANGARE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff MUSA SANGARE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDANT DETECTIVE
MATTHEW CERNY**

70. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "69" of the complaint herein with the same force and effect as if set forth herein at length.

71. That on or about January 23, 2018, at approximately between 1:30 p.m. and 2:00 p.m., at the above-stated location, at and about the shopping center parking lot located at and about Bay Parkway and Shore Parkway, in the City and State of New York, County of Kings, Defendant, DETECTIVE MATTHEW CERNY, acting under the color of law, and without probable cause or provocation, viciously and maliciously falsely detained, searched, arrested, imprisoned, and confined Plaintiff; that thereafter, Defendant, DETECTIVE MATTHEW CERNY, did cause Plaintiff to be transported from the aforesaid location to the local Precinct of the New York City

Police Department, and continued to wrongfully confine, and imprison Plaintiff, all of which deprived Plaintiff of his liberty.

72. That Plaintiff was conscious of his confinement; Plaintiff did not consent to his confinement; and the arrest, imprisonment, and confinement were not otherwise privileged or with just or probable cause.

73. That the aforesaid acts of Defendant, DETECTIVE MATTHEW CERNY, under color of law, as an individual, violated Plaintiff's right to due process, violated Plaintiff's property and/or liberty interests, violated Plaintiff's right to be free from unreasonable search and seizure, and/or violated Plaintiff's right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

74. That Defendant, DETECTIVE MATTHEW CERNY, under color of law, as an individual, violated 42 U.S.C. §1983.

75. That the aforesaid actions of Defendant, DETECTIVE MATTHEW CERNY, as an individual constituted an unreasonable seizure and confinement of Plaintiff without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

76. That by reason of the foregoing, Plaintiff MUSA SANGARE became sick, sore, lame and disabled; Plaintiff MUSA SANGARE has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff MUSA SANGARE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff MUSA SANGARE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANT MATTHEW CERNY

77. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "76" of the complaint herein with the same force and effect as if set forth herein at length.

78. That on or about January 23, 2018, at approximately between 1:30 p.m. and 2:00 p.m., at the above-stated location, at and about the shopping center parking lot located at and about Bay Parkway and Shore Parkway, in the City and State of New York, County of Kings, Defendant, DETECTIVE MATTHEW CERNY, acting under the color of law, and without probable cause or provocation, viciously and maliciously forcibly pushed and tackled Plaintiff MUSA SANGARE to the ground and used other excessive force in the course of an arrest when Defendant, DETECTIVE MATTHEW CERNY, falsely detained, searched, arrested, imprisoned, and confined Plaintiff, all of which deprived Plaintiff of his liberty.

79. That Plaintiff was conscious of his confinement; Plaintiff did not consent to his confinement and use of excessive force; and the arrest, imprisonment, confinement, and use of excessive force were not otherwise privileged or with just or probable cause.

80. That the aforesaid acts of Defendant, DETECTIVE MATTHEW CERNY, under color of law, as an individual, violated Plaintiff's right to due process, violated Plaintiff's property and/or liberty interests, violated Plaintiff's right to be free from unreasonable search and seizure, and/or violated Plaintiff's right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

81. That Defendant, DETECTIVE MATTHEW CERNY, under color of law, as an individual, violated 42 U.S.C. §1983.

82. That the aforesaid actions of Defendant, DETECTIVE MATTHEW CERNY, as an individual constituted an unreasonable use of excessive force, unreasonable seizure and confinement of Plaintiff without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

83. That by reason of the foregoing, Plaintiff MUSA SANGARE became sick, sore, lame and disabled; Plaintiff MUSA SANGARE has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff MUSA SANGARE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff MUSA SANGARE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANT P.O. JOHN DOE
NO. 1 – P.O. JOHN DOE NO. 19**

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "83" of the complaint herein with the same force and effect as if set forth herein at length.

85. That on or about January 23, 2018, at approximately between 1:30 p.m. and 2:00 p.m., at the above-stated location, at and about the shopping center parking lot located at and about Bay Parkway and Shore Parkway, in the City and State of New York, County of Kings, Defendants P.O. JOHN DOE NO.1 – P.O. JOHN DOE NO.19 acting under the color of law, and without probable cause or provocation, viciously and maliciously falsely detained, searched, arrested, imprisoned, and confined Plaintiff MUSA SANGARE; that thereafter, Defendants P.O. JOHN DOE NO.1– P.O. JOHN DOE NO.19 caused Plaintiff to be transported from the aforesaid location to the

local Precinct of the New York City Police Department, and continued to wrongfully confine, and imprison Plaintiff, all of which deprived Plaintiff of his liberty.

86. That Plaintiff was conscious of his confinement; Plaintiff did not consent to his confinement; and the arrest, imprisonment, and confinement were not otherwise privileged or with just or probable cause.

87. That the aforesaid acts of Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, under color of law, as an individual, violated Plaintiff's right to due process, violated Plaintiff's property and/or liberty interests, violated Plaintiff's right to be free from unreasonable search and seizure, and/or violated Plaintiff's right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

88. That Defendant, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, under color of law, as an individual, violated 42 U.S.C. §1983.

89. That the aforesaid actions of Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, as an individual constituted an unreasonable seizure and confinement of Plaintiff without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

90. That by reason of the foregoing, Plaintiff MUSA SANGARE became sick, sore, lame and disabled; Plaintiff MUSA SANGARE has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff MUSA SANGARE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff MUSA SANGARE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long

time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS P.O. JOHN
DOE NO. 1 – P.O. JOHN DOE NO. 19**

91. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “90” of the complaint herein with the same force and effect as if set forth herein at length.

92. That on or about January 23, 2018, at approximately between 1:30 p.m. and 2:00 p.m., at the above-stated location, at and about the shopping center parking lot located at and about Bay Parkway and Shore Parkway, in the City and State of New York, County of Kings, Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, acting under the color of law, and without probable cause or provocation, viciously and maliciously used excessive force when Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, falsely detained, searched, arrested, imprisoned, and confined Plaintiff, all of which deprived Plaintiff of his liberty.

93. That Plaintiff was conscious of his confinement; Plaintiff did not consent to his confinement and use of excessive force; and the arrest, imprisonment, confinement, and use of excessive force were not otherwise privileged or with just or probable cause.

94. That the aforesaid acts of Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, under color of law, as an individual, violated Plaintiff’s right to due process, violated Plaintiff’s property and/or liberty interests, violated Plaintiff’s right to be free from unreasonable search and seizure, and/or violated Plaintiff’s right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

95. That Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, under color of law, as an individual, violated 42 U.S.C. §1983.

96. That the aforesaid actions of Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, as an individual constituted an unreasonable use of excessive force, unreasonable seizure and confinement of Plaintiff without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

97. That by reason of the foregoing, Plaintiff MUSA SANGARE became sick, sore, lame and disabled; Plaintiff MUSA SANGARE has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff MUSA SANGARE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff MUSA SANGARE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR AN ELEVENTH CAUSE OF ACTION AGAINST DEFENDANT
SERGEANT GREGORY MAROTTA

98. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "97" of the complaint herein with the same force and effect as if set forth herein at length.

99. That by reason of the foregoing acts and/or omissions of Defendant SERGEANT GREGORY MAROTTA in violation of the Fourth Amendment to the United States Constitution, Plaintiff MUSA SANGARE has been forced to bring this lawsuit to enforce 42 U.S.C. §1983 and as a result thereof has suffered significant economic loss in the form of attorneys' fees.

100. That pursuant to 42 U.S.C. §1983, Plaintiff MUSA SANGARE is entitled to reasonable attorneys' fees as part of costs.

**AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST DEFENDANT DETECTIVE
MATTHEW CERNY**

101. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "100" of the complaint herein with the same force and effect as if set forth herein at length.

102. That by reason of the foregoing acts and/or omissions of Defendant, DETECTIVE MATTHEW CERNY, in violation of the Fourth Amendment to the United States Constitution, Plaintiff MUSA SANGARE has been forced to bring this lawsuit to enforce 42 U.S.C. §1983 and as a result thereof has suffered significant economic loss in the form of attorneys' fees.

103. That pursuant to 42 U.S.C. §1983, Plaintiff MUSA SANGARE is entitled to reasonable attorneys' fees as part of costs.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AGAINST DEFENDANTS
P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19**

104. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "103" of the complaint herein with the same force and effect as if set forth herein at length.

105. That by reason of the foregoing acts and/or omissions of Defendants P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 19, in violation of the Fourth Amendment to the United States Constitution, Plaintiff MUSA SANGARE has been forced to bring this lawsuit to enforce 42 U.S.C. §1983 and as a result thereof has suffered significant economic loss in the form of attorneys' fees.

106. That pursuant to 42 U.S.C. §1983, Plaintiff MUSA SANGARE is entitled to reasonable attorneys' fees as part of costs.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

107. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "106" of the complaint herein with the same force and effect as if set forth herein at length.

108. That at all times hereinafter mentioned, Defendants, without cause or justification, did intentionally inflict emotional distress and humiliation upon Plaintiff MUSA SANGARE causing him to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

109. That by reason of the foregoing, Plaintiff MUSA SANGARE became sick, sore, lame and disabled; Plaintiff MUSA SANGARE has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTEENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

110. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "109" of the complaint herein with the same force and effect as if set forth herein at length.

111. That at all times hereinafter mentioned, Defendants, without cause or justification, did negligently inflict emotional distress and humiliation upon Plaintiff MUSA SANGARE causing him to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

112. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendant SERGEANT GREGORY MAROTTA, DETECTIVE MATTHEW CERNY, and Defendants P.O. JOHN DOE NO. 1 – P.O. JOHN DOE

NO. 19.

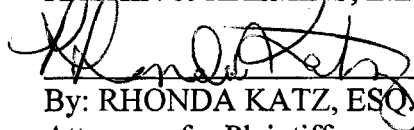
113. That by reason of the foregoing, Plaintiff MUSA SANGARE, became sick, sore, lame and disabled; Plaintiff, MUSA SANGARE, has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff, MUSA SANGARE, demands judgment against Defendants, THE CITY OF NEW YORK, SERGEANT GREGORY MAROTTA, DETECTIVE MATTHEW CERNY, and P.O. JOHN DOE NO 1 – P.O. JOHN DOE NO. 19, in an amount which exceeds the jurisdictional limits of all lower courts, together with the costs, attorneys fees, interest and disbursements of this action, and for such other and further relief as to this Court may deem just, proper and equitable.

Dated: New York, New York
February 12, 2019

Yours, etc.,

RASKIN & KREMINS, L.L.P.



By: RHONDA KATZ, ESQ.
Attorneys for Plaintiff
MUSA SANGARE
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

ATTORNEY'S VERIFICATION

RHONDA KATZ, ESQ., an attorney duly admitted to practice before all the Courts of the State of New York, hereby affirms the truth of the following under the penalties of perjury:

That I am associated with the law firm RASKIN & KREMINS, LLP, attorneys for Plaintiff herein.

That I have read the annexed COMPLAINT and know the contents thereof and that the same is true to my own knowledge except as to those matters therein alleged to be made upon information and belief, and as to those matters, I believe them to be true.

That the reason why this verification is made by your affirmant instead of Plaintiff is because Plaintiff does not reside within the County of New York, which is the County in which Raskin & Kremins, LLP maintains its office.

That the grounds for my belief as to all matters alleged to be on information and belief, are statements of said Plaintiff, papers and records in Plaintiff's possession, and a general investigation of the facts of this case.

Dated: New York, New York
February 12, 2019


RHONDA KATZ, ESQ.

Index Number:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
MUSA SANGARE,

Plaintiff,

-against-

THE CITY OF NEW YORK,
SERGEANT GREGORY MAROTTA (I.D. NUMBER
917118), DETECTIVE MATTHEW CERNY (SHIELD
NUMBER 6487), and P.O. JOHN DOE NO. 1 – P.O.
JOHN DOE NO. 19,Defendants.
-----X

SUMMONS AND VERIFIED COMPLAINT

RASKIN & KREMINS, L.L.P.
Attorneys for Plaintiff
MUSA SANGARE
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

To: Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE
NOTICE OF
ENTRY☐ ☐ that the within is a (certified) true copy of an Order entered in the office of the Clerk
☐ ☐ of the within named Court on , 2013.NOTICE OF
SETTLEMENT☐ ☐ that an Order of which the within is a true copy will be presented to the Hon.
☐ ☐ the judges of within named Court, at , on .

Dated: New York, New York

Yours, etc.,

RASKIN & KREMINS, L.L.P.
Attorneys for Plaintiff(s)
160 Broadway-4th Floor
New York, NY 10038
(212) 587-3434